

सत्यमेव जयते

The All-India Services Act, 1951

[ACT NO. 61 OF 1951]

(*As on the 2nd November, 2025*)

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LIST OF AMENDING ACTS

1. The All-India Services (Amendment) Act, 1958 (25 of 1958).
2. The All-India Services (Amendment) Act, 1963 (27 of 1963).
3. The All-India Services Regulation (Indemnity) Act, 1975 (19 of 1975).
4. The All-India Services (Amendment) Act, 1975 (23 of 1975).

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LIST OF ABBREVIATIONS USED

Cl.,cls.	*for*	Clause, clauses.
Ins.	,,	Inserted.
Notifn.	,,	Notification.
S., ss.	,,	Section, sections.
Sch.	,,	Schedule.
Subs.	,,	Substituted.
w.e.f.	,,	with effect from.

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THE ALL-INDIA SERVICES ACT, 1951

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title.
2. Definition.
2A. Other All-India Services.
3. Regulation of recruitment and conditions of service.
4. Continuance of existing rules.

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THE ALL-INDIA SERVICES ACT, 1951

ACT NO. 61 OF 1951

[29*th October,* 1951.]

An Act to regulate the recruitment, and the conditions of service of persons appointed, to the All-India Services common to the Union and the States.

BE it enacted by Parliament as follows:—

1. Short title.—This Act may be called the All-India Services Act, 1951.

2. Definition.—In this Act, the expression "an All-India Service" means the service known as the Indian Administrative Service or the service known as the Indian Police Service, [1][or any other service specified in section 2A].

[2][**2A. Other All-India Services.**—With effect from such date as the Central Government may, by notification in the Official Gazette, appoint in this behalf, there shall be constituted the following All-India Services and different dates may be appointed for different services, namely:—

1. The Indian Service of Engineers (Irrigation, Power, Buildings and Roads);

2. The Indian Forest Service;

3. The Indian Medical and Health Service.]

3. Regulation of recruitment and conditions of service.—(*1*) The Central Government may, after consultation with the Governments of the States concerned, [3]*** [4][and by notification in the Official Gazette] make rules for the regulation of recruitment, and the conditions of service of persons appointed to an All-India Service.

[5][(*1A*) The power to make rules conferred by this section shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the rules or any of them but no retrospective effect shall be given to any rule so as to prejudicially affect the interests of any person to whom such rule may be applicable.]

[6][(*2*) Every rule made by the Central Government under this section and every regulation made under or in pursuance of any such rule, shall be laid, as soon as may be after such rule or regulation is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in such rule or regulation or both Houses agree that such rule or regulation should not be made, the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation.]

4. Continuance of existing rules.—All rules in force immediately before the commencement of this Act and applicable to an All-India Service shall continue to be in force and shall be deemed to be rules made under this Act.

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1. Ins. by Act 27 of 1963, s. 2.
2. Ins. by s. 3, *ibid*.
3. The words "including the State of Jammu and Kashmir" omitted by the Jammu and Kashmir Reorganisation (Adaptation of Central Laws) Order, 2020, *vide* Notifn. No. S.O. 1123(E), dated (18-3-2020) and *vide* Union Territory of Ladakh Reorganisation (Adaptation of Central Laws) Order, 2020, Notifn No. S.O. 3774(E), dated (23-10-2020). Earlier ins. by Act 25 of 1958, s. 2.
4. Ins. by Act 19 of 1975, s. 3.
5. Ins. by Act 23 of 1975, s. 2.
6. Subs. by Act 19 of 1975, s. 3, for sub-section (*2*).

STATEMENT OF OBJECTS AND REASONS

Article 312 of the Constitution provides that Parliament may by law regulates recruitment, and the conditions of service of persons appointed, to the all-India Services common to the Union and the States. At present there are two such all-India Services, namely, the Indian Administrative Service and the Indian Police Service. In the absence of any proviso to article 312 similar to that included in article 309, the Government of India is now compelled to deal with many of these matters by means of non-statutory executive orders. This is neither satisfactory nor quite justifiable.

2. Before the commencement of the Constitution, the Government of India issued the Indian Civil Administrative Cadre Rules and the Indian Police Service Cadre Rules. Although these Rules, in so far as they are not inconsistent with the Constitution, are continued in force by article 313 of the Constitution, they authorise the regulation of only such items relating to the conditions of service as had already been settled. Emergency recruitment to these Services to fill the gaps left hy the departure of the British element in the I.C.S. and the Indian Police was still in progress at that time. Many matters relating to the conditions of services of such officers where the fixation of retirement benefits have yet to be settled. Arrangements have also been completed recently to extend the Indian Administrative Service and the Indian Police Service scheme the Part B States.

3. It is necessary that Parliament should provide the requisite statutory authority to enable the Government of India to carry on the day-to-day management of the two all-India Services and also to take promulgate decisions on matters relating to the recruitment and the conditions of service from service from time to time.

4. The present Bill seeks to fill a constitutional lacuna without proceeding to incorporate any detailed provisions. This course is necessitated, among other things, by the shortness of time available to Parliament this year. After the necessary transitional period is passed through, it will be possible to incorporate the major provisions in an Act of Parliament. The present Bill provides that recruitment and conditions of service of officers of the two all-India Services shall be regulated by rules to be made by the Central Government in consultation with the Governments of the participating States. The Bill, however, provides that all the rules so made shall be laid before Parliament and shall be subject to such modifications as Parliament may make.

NEW DELHI: C. RAJAGOPALACHARI.
The 25*th September*, 1951.

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